



**DEPARTMENT OF THE NAVY  
SOUTHWEST REGIONAL MAINTENANCE CENTER  
3755 BRINSER ST STE 1  
SAN DIEGO, CA 92136-5299**

Code: 440A  
Contract Number: N00024-24-C-4408  
Date: 12 March 2025

**JUSTIFICATION AND APPROVAL  
FOR USE OF OTHER THAN FULL AND OPEN  
COMPETITION**

**1. CONTRACTING ACTIVITY**

The Naval Sea Systems Command, Southwest Regional Maintenance Center (N55236), Contracting Department Code 440A, 3755 Brinser Street, Suite #1, San Diego, CA 92136-5299. Contracting ACO: Jacob Fox, Jacob.w.fox.civ@us.navy.mil

**2. DESCRIPTION OF THE ACTION BEING APPROVED:**

Sole source contract action is to add two (2) New Work Items at a Firm Fixed Price to BAE Systems San Diego Ship Repair Inc. (BAE) under Contract N00024-24-C-4408 awarded for USS MOBILE (LCS 26) Fiscal Year 2025 (FY25) Docking Selected Restricted Availability (DSRA).

Work Item to be incorporated:

- a. 123-11-006; Structural Repairs; accomplish.
- b. 241-11-003; Chilled Water Piping; repair.

**3. DESCRIPTION OF SUPPLIES/SERVICES:**

- a. Work Items 123-11-006 and 241-11-00.
- b. Total Value: [REDACTED]. Funding will be FY25 OPN-TYCOM.
- c. The work will begin [REDACTED], or as soon as authorized to place on contract and be completed by [REDACTED]. The USS MOBILE (LCS 26) FY25 DSRA start of the availability is [REDACTED] with a Delivery Date of [REDACTED].
- d. The Government's minimum needs have been certified as complete and accurate by the technical and requirements personnel.

**4. STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION**

The statutory authority permitting other than full and open competition is 10 U.S.C. § 3204 (a)(2) as implemented by the Federal Acquisition Regulation (FAR) 6.302-1— this authority applies in those situations where only one responsible source and no other supplies or services will satisfy agency requirements and precludes full and open competition, and delaying in award would result in serious injury to the Government. This availability is the last opportunity to complete this upgrade during the ships availability window and this work is needed to fulfill required operational capability.

##### **5. RATIONALE JUSTIFYING USE OF CITED STATUTORY AUTHORITY.**

Request for Contract Change (RCC) 92N was generated to accomplished structural repairs and (RCC) 98N was generated to repair the Chilled Water Piping, in support of the USS MOBILE (LCS 26) Fiscal Year 2025 (FY25) DSRA. Code 200 had identified mandatory structural repairs that prevent structural deformations leading to water intrusion this work will be completed under RCC 92N. During the DSRA walk through in the Passageway between Galley and Mess decks, it was discovered that potable water pipe leaks. The leak is causing hazardous condition which could escalate and cause further damage to critical system to the ship. Immediate repair is necessary, to minimize the impact on the potable water system this work will be completed under RCC 98N. There is still sufficient time within this DSRA to complete this new work and completing now would alleviate duplication of costs and overlapping repair schedules. During this window of maintenance availability, no other source can satisfy the Agency's requirements without a significant impact to the availability milestones and completion schedule. An impact to the availability completion schedule would pose a serious risk to mission readiness and war fighting capabilities of the USS MOBILE (LCS 26).

During this window of the DSRA, no other source can satisfy the Agency's requirements without a significant impact to the availability completion as scheduled. The estimated time frame for completion of these repairs is eight (8) months. The timeline to re-solicit does not support the completion of work prior to the Production Complete (PCD) Milestone [REDACTED].

If competed, the timeline for solicitation is projected as follows: Development of Requirements Package due to contracts by [REDACTED], Solicitation/Request for Proposal (RFP), Respond to Preproposal Inquiries (PPI) and submit required Solicitation Amendments ([REDACTED]), Receipt and Evaluation of proposals by [REDACTED] and execute Contract Award by [REDACTED]. Thus, the required work would commence May at the earliest, and given the 6 weeks of estimated for completion, the work will end in [REDACTED]. For every day the RCCs are not authorized on contract, it has the potential to impact the scheduled ship training leading to end of avail, therefore, creating a day-to-day delay in schedule. Any delay will impact the milestones and key events in support of the end of availability, and deployment readiness.

This work needs to be accomplished by the Production Complete Date of [REDACTED] in order for the ship to meet its operational and testing requirements that are scheduled after the DSRA. For every day these RCCs are not on contract, there is the potential to cause a day-to-day delay in the established milestones and potentially the delivery date. Timely completion of this work is critical. Failure to complete the repairs by the Production Complete Date will prevent the ship from achieving certification and accomplishing training to be mission ready. BAE has the means to incorporate the scope of work in RCC 92N & 98N without significant delays or duplication of costs. By repairing these deficiencies, we can mitigate the risk of further damage and ensure the integrity and longevity of the associated systems.

RCC 92N was sent to the Contractor on [REDACTED], and an acceptable proposal was received on [REDACTED] for a total price of [REDACTED].  
RCC 98N was sent to the Contractor on [REDACTED], and an acceptable proposal was received on [REDACTED] for a total price of [REDACTED].

**6. DESCRIPTION OF EFFORTS MADE TO SOLICIT OFFERS FROM AS MANY OFFERORS AS PRACTICABLE:**

The original contract was awarded competitively in which BAE was the selected awardee and this work was not on contract under the award. During this window of maintenance availability no other source can satisfy the Agency's requirements without a significant impact to the availability completion schedule. BAE is uniquely positioned to perform the work as the ship is currently under repair by BAE at their shipyard undergoing a Docking Selected Restricted Availability (DSRA), and it is impracticable for another company to perform these support services concurrently with other ongoing repairs currently being completed by BAE. A publication will be posted in accordance with FAR 5.201 once the RCCs are settled.

**7. DETERMINATION OF FAIR AND REASONABLE COST:**

The Contracting Officer has determined that the anticipated cost to the Government of this acquisition will be fair and reasonable based on cost and price analysis to be conducted pursuant to FAR Part 15. In addition, technical analysis will be performed with the Project Manager to ensure the proposed labor hours, material cost, and subcontractor cost correspond with the expected cost or Independent Government Estimate (IGE). The basis of estimate for the IGE was developed utilizing the SWRMC Estimating Guide and the Ship Build Specialist's knowledge of the requirements. The ship repair market is well known to the contracting officer based on his in-depth experience in the field. That said, additional market research beyond the above was not conducted due to the fact that the ship is already in BAE's shipyard undergoing major repairs and it is impracticable for another company to perform the work.

**8. ACTION TAKEN TO REMOVE BARRIERS TO COMPETITION:**

Upon discovery of the repairs, discussions commenced with Government leadership to analyze the best course of action given the availability's schedule and the available options. Due to the time restraint on when the work was to be completed to not impact the overall availability schedule and various other sequenced working events, it was determined that there was not sufficient time to solicit out the new work. It was not guaranteed that BAE would be successful in obtaining this scope of work, which means, there would be additional time delays to get the awarded company access into BAE's shipyard and for this company to complete the work from set up to tear down. Cost was also a factor as BAE would most likely have the better price due to already having the ship in their shipyard and the services already made readily available. Due to the high likelihood of a higher cost to the government and unacceptable timeframes outside the awarded availability schedule, it is in the Government's best interest to include these new works into the contract.

## CERTIFICATIONS AND APPROVAL

### TECHNICAL/REQUIREMENTS CERTIFICATION (FAR 6.303-2(b))

I certify that the facts and representations under my cognizance, which are included in this justification and its supporting acquisition planning data are complete and accurate to the best of my knowledge and belief.

#### TECHNICAL COGNIZANCE:

**PALOMBA.ANTHONY.** [REDACTED] Digitally signed by  
[REDACTED] PALOMBA.ANTHONY. [REDACTED]  
Date: 2025.03.14 07:04:03 -07'00'

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Project Manager – USS MOBILE (LCS 26)

#### REQUIREMENTS COGNIZANCE:

**MAGLINTE.GUNTHER**  
**IAN.INCISO.** [REDACTED] Digitally signed by MAGLINTE.GUNTHER  
IAN.INCISO. [REDACTED]  
Date: 2025.03.14 07:57:48 -07'00'

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Port Engineer - USS MOBILE (LCS 26)

### LEGAL SUFFICIENCY REVIEW (NMCARS 5206.303(90))

I have determined this justification is legally sufficient.

**O'HARA.KATHLEEN.JEANETTE.** [REDACTED] Digitally signed by  
[REDACTED] O'HARA.KATHLEEN.JEANETTE. [REDACTED]  
Date: 2025.03.17 09:57:12 -07'00'

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Office of Counsel, SWRMC C100  
(619) 556-1587

### CONTRACTING OFFICER CERTIFICATION (FAR 6.303-2(a)(12))

I certify that this justification is accurate and complete to the best of my knowledge and belief.

**FOX.JACOB.W.** [REDACTED] Digitally signed by  
[REDACTED] FOX.JACOB.W. [REDACTED]  
Date: 2025.03.14 08:15:07 -07'00'

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Administrative Contracting Officer  
SWRMC C440A